

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SWEDEN

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Sweden. The clearest proof is a forest on the island of Gotland. When the limestone company Nordkalk sought to open a vast quarry at **Bunge Ducker**, in the **Ojnare** forest beside Lake Bästeträsk — a lake that is also a drinking-water reservoir, in a place ringed by protected nature — local residents and a nationwide movement refused to accept it. Through the summer of 2012, activists and Gotlanders physically **blockaded the forest**, standing in front of the machines; the fight ran for a decade through the **Land and Environment Courts**, the county board, the environmental agencies, the national press, and the government. The courts, tellingly, sided with the company more than once. But the community, the county administrative board, and the environmental agencies kept pressing the one argument the national system could not override — that the area's nature was protected under **European Union law** — and in 2015 the government designated it a **Natura 2000 site**, which stopped the quarry and saved the forest and the water. A project that had won in court was beaten anyway, because a community found the lever that reached above the court. The fight was long: Nordkalk first applied in 2005, the Land and Environment Court granted the permit in 2012 and again in 2014, and each time the community, the county administrative board, the Environmental Protection Agency, and the marine and water agency kept pressing. The forested area of roughly 1,500 hectares sat between two existing protected sites and around a lake that supplied drinking water, and in August 2015 the government designated it a Natura 2000 site under EU law — pairing the decision with support for Gotland jobs to blunt the economic argument. By 2017 the protection was settled and the quarry was dead.

Ojnare teaches two things about winning in Sweden. The first is the pattern: not a single silver bullet, but the combination of every lever — the environmental permit process and its consultation, the specialised courts, the extraordinary transparency of Swedish public records, the right of environmental organisations to appeal, EU nature law, municipal planning power, and mobilisation — pressed until a project became impossible. The second is distinctly Swedish and worth stating at the outset: Sweden gives ordinary people two unusual advantages — a near-total right to see the State's own documents, the **offentlighetsprincipen**, and a legal right for **environmental organisations to appeal** permit decisions to specialised courts. Together they let a small group build a case on the authorities' own paper and take it before a judge.

Most communities, though, do not know HOW to make opposition effective. They send one comment at the consultation and go home. They assume the permit "will be granted anyway," and so they never make a substantive submission, never request the documents they are entitled to, never form or join an organisation with the right to appeal, never invoke EU nature law, never build the mobilisation that changes a decision. They generate a burst of outrage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Swedish system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a movement that lasts)
STEP 4: LEGAL CHALLENGES	(consultation, the Land and Environment Courts, EU nature law, appeal)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the movement sustains the pressure that decision-makers and courts respond to; a legal challenge is a headline and a headline strengthens a challenge. The community that runs all five together, each reinforcing the others, is the one that wins. Ojnare did exactly this — it documented the water and the habitat, organised a durable and visible movement, pursued every legal and administrative lever including EU law, and made a Gotland forest a national cause, all at once.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Sweden's give communities a distinctive set:

- **The principle of public access (offentlighetsprincipen).** Sweden has one of the world's strongest rights to official documents: almost every paper held by an authority is, by default, public, and you can ask for it — usually free, often anonymously, and quickly. This is a research advantage few countries offer.
- **The Land and Environment Courts.** Environmental permits and appeals are decided by specialised **Mark- och miljödomstolar**, with a specialised **Court of Appeal** above them — technical courts built for these disputes.
- **The right of organisations to appeal.** Under Aarhus-based rules, an environmental organisation of a certain size and standing can **appeal** environmental permits and many planning decisions — so a community that organises gains a formal seat in court.
- **EU nature law.** The **Habitats and Birds Directives** and **Natura 2000**, and the **Water Framework Directive**, sit above Swedish law and can stop a project the national system would allow — the lever that saved Ojnare.
- **Municipal planning power.** Municipalities control land-use planning, and for **wind power** hold an outright **veto** — local democracy is a real gatekeeper.
- **Sámi and reindeer-husbandry rights.** In Sápmi, the north, Sámi reindeer husbandry is a protected national interest, and Sámi rights — strengthened by the courts and a consultation duty — bear on projects there.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. At Ojnare, the courts repeatedly ruled **for** the company; the win came from EU nature law and a government designation, not from the judges. Sweden is pushing hard for mining and a "green transition," and the government has **backed extraction over local and Sámi objection** — granting the contested **Kallak/Gállók** iron-ore concession in the north despite Sámi and international opposition, and even passing **emergency legislation** to keep a strategically important limestone quarry (Cementa, at Slite) running after a court loss. Sweden has **not ratified ILO Convention 169**, so Sámi rights, though real, are more limited than in some countries. And permitting usually ends in approval. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright stop is not realistic, how to secure the delay, the conditions, the exposure, and the worn-down proponent that, in a hard fight, are often what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A Swedish development project runs through a structured set of institutions, and each is a place to intervene.

The environmental permit. For most significant projects — quarries, mines, factories, large water operations, wind farms — the decisive decision is a **permit (tillstånd)** under the **Environmental Code (Miljöbalken)**, based on an **environmental impact assessment (MKB)** and preceded by early **consultation (samråd)**. Depending on the activity, the permit is decided by the **County Administrative Board (Länsstyrelsen)** or directly by a **Land and Environment Court**. This is where most projects live or die.

The Land and Environment Courts. Sweden has specialised **Mark- och miljödomstolar** and, above them, the **Land and Environment Court of Appeal (Mark- och miljööverdomstolen)**. They decide major permits at first instance and hear appeals — the technical heart of Swedish environmental law.

The municipality. Municipalities hold a **planning monopoly** over land use through the **översiktsplan** and **detaljplan**, and for **wind power** they hold a **veto**. A project often needs the municipality on side, which makes local democracy a real gate.

Mining and the north. Mines run through a separate track — an exploration and exploitation concession from the **Mining Inspectorate (Bergsstaten)** under the Minerals Act, plus an environmental permit — and in Sápmi they collide with **Sámi reindeer-husbandry rights**, a protected national interest.

The Journey of a Project

A typical project moves from a proposal, to early **samråd** and an **MKB**, to a **permit application** at the County Board or

the Land and Environment Court, to the **decision**, to any **appeals** through the courts (and, for EU-protected nature, the question of a Natura 2000 permit), with municipal planning running alongside, and only then to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: a substantive submission at samråd, a demand for the documents, evidence that the MKB is deficient. The later doors — an appeal to the Land and Environment Court, an EU nature-law argument, an appeal to the Court of Appeal — are more demanding but real, and communities walk through them. Find out exactly where your project stands on this path today; that tells you which door is open now.

Follow the Money and the Permit

Behind the permit stand a proponent, its owners, its financiers, and the authority or court that approved it. A large project is often driven by a company answerable to shareholders, lenders, and a public reputation a campaign can reach — Nordkalk was a subsidiary of a large group with its own image to protect. Trace who owns and funds the proponent, who buys its output, and which body granted the permit. Two questions unlock most Swedish fights: **Did the process comply with the law — the MKB, the consultation, EU nature law, the Environmental Code — and were the impacts honestly assessed?** and **Who benefits from pretending they were?** Mapping the chain also shows where the project is exposed that the permitting authority is not: many Swedish operators are subsidiaries of larger European groups with sustainability commitments and reputations to protect, and buyers and lenders with their own environmental standards — and a project facing a serious EU nature-law challenge is a risk to all of them. These are pressure points the County Board does not control.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **Land and Environment Courts** and, ultimately, the **Supreme Court** and **Supreme Administrative Court** review decisions. The **County Administrative Board**, the **Environmental Protection Agency (Naturvårdsverket)**, and the **Agency for Marine and Water Management (HaV)** supervise and can object — at Ojnare, all three lined up against the quarry. The **Parliamentary Ombudsman (JO)** and the **Chancellor of Justice (JK)** examine maladministration, the **European Commission** enforces EU environmental law, and the offentlighetsprincipen makes almost everything they hold visible. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file — easily assembled here, thanks to the open record — can go to the County Board, the Land and Environment Court, the environment agencies, the municipality, the European Commission, the proponent's owners, and the press at once, and each front that opens makes the others harder to close. A Swedish campaign's power comes not from any single lever but from applying several at the same time, with EU nature law as the one that reaches highest.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Swedish and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project affects an **EU-protected site or water body** (the strongest lever), whether the **MKB and process have real defects**, whether an **organisation with the right to appeal** exists, whether the **municipality** can be brought on side, and whether the public and the proponent's reputation can be reached. Where EU nature law bites and the community organises, Sweden's levers are strong; where the paperwork is clean and the government backs the project — especially mining in the north — discount the figures and think in terms of delay, conditions, exposure, and mobilisation.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Submission at samråd / consultation	15-35%	during permitting	low	On record; conditions; grounds
Appeal to the Land and Environment Court	25-45%	6-24 months	low-moderate	Permit refused, conditioned, or reassessed
Appeal to the Court of Appeal	20-40%	1-3 years	moderate	Decision overturned or tightened
EU nature-law argument (Natura 2000 / WFD)	35-60%	1-4 years	low-moderate	Permit blocked; the Ojnare lever
Question Municipality's right to appeal	30-50%	6-24 months	low	Permit blocked in court

Organisation's right-to-appeal challenge	30-50%	0-24 months	low	Permit tested in court
Municipal route (planning / wind veto)	25-50%	months-years	low	Project blocked or refused locally
Sámi reindeer-rights defence (in the north)	20-45%	years	low-moderate	Weight against the project; conditions
Public-records (offentlighetsprincipen) route	very high for disclosure	days-weeks	free/low	Documents released; defects exposed
Media & public campaign	30-55%	ongoing	low	Political cost raised; decision shifts
EU complaint / reputational pressure	20-45%	months-years	low	Commission scrutiny; backer walks away
All steps combined (EU-protected nature)	45-65%	1-4 years	low-moderate	Stalled, blocked, conditioned, or abandoned
All steps combined (clean permit, govt-backed)	20-45%	1-5 years	low-moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Sweden's real strengths are distinctive — the **offentlighetsprincipen** that lays open the record, the **Land and Environment Courts**, the **right of organisations to appeal**, **EU nature law** (which saved Ojnare), **municipal planning power** and the **wind veto**, **Sámi rights** in the north, and a **strong mobilisation tradition**. Its constraints are **courts that often side with permit-holders**, a **government pushing mining and the "green transition,"** its **willingness to override local and Sámi objection**, and its **non-ratification of ILO 169**.

A note on cost: documenting, submitting at consultation, and — above all — requesting public documents are essentially free, and the offentlighetsprincipen makes the research phase cheaper in Sweden than almost anywhere. Appeals to the Land and Environment Courts are relatively low-cost and do not usually carry the ruinous adverse-costs risk of some systems, and environmental organisations and legal-aid clinics can help. The expenditure that most changes outcomes is committed technical and legal input — an ecologist or hydrologist to expose the MKB, a lawyer for the EU-law argument — and the reach of the media and mobilisation, exactly what Ojnare marshalled.

Effectiveness Visualization

SUCCESS PROBABILITY (stalled, delayed, blocked, conditioned, or abandoned)

EU-PROTECTED NATURE -- Natura 2000 / water body, community organised:

All steps combined: 45-65%
 EU nature-law argument: 35-60%
 Court + organisation appeal: 25-50% each
 Samråd submission: 15-35%, more with appeal
 Single step: 5-60%

CLEAN PERMIT, GOVERNMENT-BACKED -- mining / "green" project in the north:

All steps combined: 20-45%
 Mobilisation + media + Sámi rights: the strongest combination
 Delay / conditions: more achievable than an outright stop
 Single step: 5-45%

How to read this honestly. The levers that most change outcomes in Sweden are **EU nature law**, **the courts**, and **the right to appeal** where a protected site is engaged, and **the transparency, the mobilisation, and the media** everywhere. Ojnare shows the ceiling: a decade of documentation, a blockade, agency support, and EU law beat a project the courts had approved. The floor is set by courts that lean toward permit-holders and by a government determined to build — it granted the Kallak mine over Sámi objection and legislated to keep a quarry open after a court loss. Most Swedish fights sit between them, and the honest lesson is that EU nature law, transparency, and mobilisation are real and distinctive levers — but against a clean, government-backed project, the realistic win is often delay, conditions, exposure, and a proponent worn down, as much as an outright stop. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that documents, submits, secures appeal standing, builds the EU-law case, and publicises at once consistently outperforms the one that pins its hopes on any single move or any single court.

Step Importance Ranking (When All Combined)

1. **EU nature law (Natura 2000, the Water Framework Directive)** — Sweden's strongest lever where a protected site or water body is engaged; it saved Ojnare above the courts.
2. **The offentlighetsprincipen and the record** — the transparency that lets a community build a case few systems would allow.

3. **The Land and Environment Courts and the right to appeal** — the specialised forum and the organisational standing that put a community before a judge.
4. **The mobilised, sustained movement** — the Ojnare tradition that makes a project a national cause and holds the line.
5. **Municipal power and Sámi rights** — the local planning veto and, in the north, the weight of reindeer husbandry.

What Swedish Campaigns Actually Show

A few patterns recur. **EU nature law can beat a project the courts approved** — Ojnare proved it. **Transparency is a weapon** — the offentlighetsprincipen lays open the record. **Organisations can appeal** — the Aarhus-based right of environmental organisations to challenge a permit gives a community a formal seat in court that many other systems deny it entirely. **Agencies can become allies** — at Ojnare the county administrative board, the Environmental Protection Agency, and the marine and water agency all lined up against the quarry, and their opposition carried real weight. **Municipalities can block** — through the planning monopoly, and especially through the outright veto they hold over wind power. **But the courts often side with permit-holders**, the government backs mining and the green transition, it will override local and Sámi objection, and ILO 169 is unratified. The through-line: **submit substantively at consultation; get the documents; find the defect and, above all, the EU nature-law angle; organise so you can appeal; bring the municipality and the agencies on side; mobilise the public — and expect a long fight measured in delay, conditions, and exposure as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the quarry" goes nowhere; opposition to "the environmental permit sought on an MKB that understated the harm to a Natura 2000 site and a drinking-water reservoir, contrary to the Habitats Directive" is a case. Answer five questions.

The Five Core Questions

1. **What exactly is proposed, and under what permit?** Name the project, the proponent, and the specific instrument it needs or holds — the environmental permit under the Environmental Code (and whether the County Board or a Land and Environment Court decides it), a mining concession, the municipal plan. Each has conditions and a paper trail, and each is a place a defect hides.
2. **What stage is it at?** Pre-application and samråd? MKB out for consultation? Permit application filed? Decided by the County Board or the court? Under appeal? The stage dictates the door. If samråd or consultation is open, your submission is the cheap, powerful route now; if a permit is granted, an appeal to the Land and Environment Court is the route — and there are deadlines.
3. **Is EU-protected nature or water engaged?** This is often the decisive Swedish question. Does the project affect a **Natura 2000 site**, a protected species, or a **water body** whose status the Water Framework Directive protects? If so, EU nature law is your strongest lever — the one that reached above the courts at Ojnare.
4. **Is the MKB or process defective, and who can appeal?** Was the **MKB deficient** — understating the water, the habitat, the species, the cumulative effects? Was **samråd** inadequate? And crucially: is there an **environmental organisation with the right to appeal**, or should you form or join one? Standing is a practical question to settle early.
5. **Who decides, who benefits, and who is watching?** Which authority or court decides; who owns, funds, and buys from the proponent; whether the municipality and the agencies are for or against; whether Sámi reindeer husbandry is affected; and which environmental organisations, lawyers, press, and EU-facing allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a company proposes a quarry or mine beside a protected lake and forest, with the MKB out for consultation and the permit not yet decided.

Working the five questions: the project needs an **environmental permit** (pending — get the MKB and act). It is **at consultation**, so a substantive samråd submission is the live route now, with an appeal held in reserve. The **protected lake and forest** raise **EU nature law (Natura 2000, the Water Framework Directive)** — the strongest lever. The **MKB** may understate the water and habitat harm, and you should **form or join an organisation with the right to**

appeal now. The County Board or court decides, so the **EU-law argument, the courts, the agencies, and the public** carry more weight than quiet lobbying.

Within a weekend you have moved from "we oppose the quarry" to a target list: obtain the MKB and application (using the *offentlighetsprincipen*); make a substantive *samråd* submission; build the Natura 2000 and Water Framework Directive argument; ensure an organisation with appeal standing is in place; line up the county board and environment agencies; commission independent water and habitat evidence; and prepare the forest-and-water story for the press. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks — get the MKB, submit at *samråd*, build the EU-law case, secure appeal standing — each tied to a specific lever and each of which can begin this week, several of them before the permit is even decided. That is the difference the five questions make.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A judge in the Land and Environment Court, an agency official, a journalist, and a company's owners all move on evidence, not indignation. In Sweden, one tool makes this layer easier than almost anywhere: the *offentlighetsprincipen*. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on — and in Sweden you are entitled to almost all of them. Request the **permit application and the MKB**; the **samråd record**; the authority's or court's **decision and its reasons**; the **inspection and supervision file**; and the relevant **municipal plans**. Under the *offentlighetsprincipen*, almost every document held by an authority is public by default: you can ask any authority for its **allmänna handlingar**, usually free, often anonymously, and it must respond promptly. This is a research advantage most campaigners elsewhere can only dream of. Read the MKB not only for what it claims but for what it quietly concedes and omits — the water drawdown modelled optimistically, the protected species surveyed thinly, the cumulative effect of neighbouring operations declined, the restoration that assumes a limestone landscape can be put back. It is written by consultants paid to secure the permit; read against the grain, and against the agencies' own opinions once you have requested them, it is usually where the strongest objection is hiding in plain sight. The gap between what the MKB claims and what the science, the water, and EU law require is where cases are won. At Öjnare, the documented facts — a drinking-water reservoir, habitat between two Natura 2000 sites — were exactly what the EU-law case was built on. The right rests on the Freedom of the Press Act, one of Sweden's constitutional laws, and it is unusually generous: you may ask for a document without giving your name or your reason, the authority must hand it over promptly, copies of reasonable amounts are free or cheap, and a refusal must cite a specific secrecy rule and can itself be appealed. For a campaigner this is transformative — the internal memos, the consultee objections, and the technical opinions that would take months of litigation to prise loose elsewhere are, in Sweden, yours more or less for the asking.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual site** — the forest, the lake, the wetland, the reindeer grazing land, the footprint — and geotag it. Log **incidents**: pollution, a lowered water table, works beyond permit. Capture **before-and-after** with your own photos and with freely available satellite imagery, to show clearing or the true scale. Record **species and habitat** — protected species, the Natura 2000 features, the water body's status — mapped against the footprint, because these are the facts EU law turns on. Record **testimony and knowledge**: residents, and — where Sámi reindeer husbandry is affected, and on the community's own terms — the reindeer-herding communities' knowledge of the land. Independent readings from an ecologist or hydrologist add decisive weight.

Layer 3: The Defects and the Law

Finally, document the failures of process and the legal lines the project crosses. Does it harm a **Natura 2000 site** or a protected species without meeting the strict tests of the **Habitats Directive**? Does it threaten a **water body's status** under the Water Framework Directive? Was the **MKB deficient** — understating the water, the habitat, the cumulative effects? Was *samråd* a formality? Does it override **Sámi reindeer husbandry**, a national interest, without proper weighing? Each defect is a separate ground — for a submission, an appeal to the Land and Environment Court, an EU-law argument, or a complaint to the European Commission — and together they make a case that is hard to wave away. This is the layer that most often decides Swedish fights, because here a project that looked permissible is revealed to breach EU nature law, to rest on an assessment that hid its harm, or to override protected rights. Work it methodically against

each requirement: does the project significantly affect a Natura 2000 site, and if so does it clear the Habitats Directive's strict tests; would it cause a water body to deteriorate; were the effects on habitat, species, and water honestly assessed; was samråd genuine; is reindeer husbandry properly weighed? Where the answer is no, capture the proof — because each 'no' is a separate ground the courts, the agencies, or the European Commission can act on, and the EU-law grounds are the ones hardest to override.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Swedish cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect. And in Sweden, the offentlighetsprincipen means you can usually just ask.

The Permits and Their Paper Trail

- **The permit application and the MKB (environmental impact assessment)**, from the County Administrative Board or the Land and Environment Court. Read the MKB for what it understates — the water body, the habitat, the protected species, the cumulative effects, the restoration plan.
- **The samråd record** — the early consultation with the public and authorities, and how concerns were answered.
- **The decision and its reasons**, and the **consultee positions** — the county board, Naturvårdsverket, HaV; a critical agency position that the decision overrode is powerful, as the agencies' opposition was at Ojnare.
- **The supervision and inspection file** — for an operating activity, the compliance record.
- **The Natura 2000 and species data** — the site's conservation objectives and the protected features, and the water body's status classification.
- **The municipal plans** — the översiktsplan and any detaljplan — and, for wind, the municipality's position.

How to Get Them — the Swedish Advantage

Here Sweden is exceptional. Under the **offentlighetsprincipen**, almost every document held by a public authority is an **allmän handling** available to anyone on request — usually promptly, often free, and you need not give your name or your reason. Simply ask the authority (the County Board, the municipality, the agency, the court) for the documents in the case, by case number. A refusal is rare, must be justified, and can itself be appealed. This transforms the research phase: the evidence a campaigner elsewhere would fight for months to obtain, a Swedish community can often have in days. A practical tip: address requests to the specific authority holding the case, cite the case number, and ask for the full list of documents (a dagbok or aktbilageförteckning) so you can see everything on file and request what matters; keep proof of what you asked and when. If a document is withheld, insist on a formal, appealable decision — the mere fact that an authority resists disclosing something is often a signal of where the weakness lies. Use it fully and early — and note the deadlines that will not wait, above all the period to **appeal** a permit decision to the Land and Environment Court, which is short and strict.

The Ground Evidence

- **Dated, geotagged photographs and video** of the site, the lake, the forest, the works.
- **Satellite before-and-after** from freely available imagery, to show clearing or the true extent.
- **Species and habitat records** — protected species, Natura 2000 features, the water body's status — mapped against the footprint; a documented harm to a protected feature the MKB downplayed is decisive under EU law.
- **Independent technical readings** — an ecologist's, hydrologist's, or hydrogeologist's report, and an independent review of the MKB. Environmental organisations and university partners can help source these.
- **Maps** overlaying the footprint on the Natura 2000 site, the water body, the reindeer grazing land, and the protected habitat — a single map showing a quarry over a water reservoir or a protected site is worth pages of argument.
- **Testimony and knowledge** — from residents, and, where reindeer husbandry is affected and on the community's own terms, the herding communities.

Organise It So It Persuades

Keep a **master timeline** of every permitting step, the samråd, the decision, the appeal deadlines, incidents, and supervision — the spine of any court case. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a journalist, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a

fight that can run for years and pass through many hands, the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE A MOVEMENT THAT LASTS

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months or years a fight takes. This is the step Ojnare did best: a local community and a nationwide movement that held the forest, and held together, for a decade.

Phase 1: The Core — and an Organisation That Can Appeal

Start with a small, committed core — five to fifteen people who will carry the work. In Sweden there is a specific, important early task: **make sure an environmental organisation with the right to appeal is in place** — either by joining an existing one (a local branch of a national body) or, where needed, by forming an association that can meet the standing requirements. This is what turns a group of objectors into a party that can take the permit to court. Assign roles: documentation, legal liaison, technical, media, community liaison, and coordination. Agree on the goal — a refused or conditioned permit, a project blocked by EU law or the municipality, a proponent walking away — and on what you will and will not accept.

Phase 2: The Coalition

Then widen deliberately. Bring in **residents, landowners, hunting and fishing associations, hembygdsföreningar (local heritage societies), farmers, scientists, and — where relevant — Sámi reindeer-herding communities (on their own terms and leadership)**. Reach the **allies with capacity** — the national environmental organisations (the Swedish Society for Nature Conservation, Fältbiologerna/Nature and Youth, and others) that litigate and mobilise; independent scientists; and the reputational-pressure campaigners who reach a company's owners and buyers. Ojnare drew its power from exactly this breadth — Gotland locals joined to national youth and environmental organisations, scientists, and eventually the agencies — which is precisely the spread a winning campaign needs.

A worked coalition example. Facing a quarry by a protected lake, residents and a heritage society form a core and ensure an appeal-standing organisation is in place; they bring in a national environmental organisation and an independent hydrogeologist; the county board and the environment agencies come out against; and the EU-law argument is built with a lawyer. No single group could have carried it; together they cover documentation, law, science, local legitimacy, national reach, and the decisive EU-law lever.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — a strong samråd submission, a document that exposes a defect, an agency coming out against, an appeal admitted. Rotate the exhausting roles. And protect people: keep leadership collective and visible; take legal advice before any action (such as a blockade) that risks trespass, an injunction, or arrest, as the Ojnare activists did; document any intimidation; and build outside links to national organisations and the press. Sustaining a campaign — as Ojnare's decade shows — is how these fights are won, and the ones that endure pace themselves. Build in the things that keep people together: welcome newcomers, share fika and food, mark the anniversaries and the small victories, and make the campaign a community people want to belong to. A fight that runs through samråd, a first-instance permit, an appeal, and an EU-law question can take a decade, as Ojnare did — and the movements that last that long are the ones whose members would still gather if the project vanished tomorrow.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for consultation meetings and public events. Gather substantive submissions and support. Hold peaceful, well-documented actions — the Ojnare forest blockade of 2012 became a national symbol — being clear-eyed that direct action carries legal risk that must be weighed with advice, and following the leadership of any Sámi community where its land is concerned. The point is not spectacle; it is to demonstrate, to the County Board, the courts, the municipality, and the proponent, that the opposition is broad, rooted, and not going away.

STEP 4: LEGAL CHALLENGES — CONSULTATION, THE COURTS, AND EU NATURE LAW

Swedish law gives communities a real arsenal, and you do not need a final ruling to win with it: a submission, an appeal, or an EU-law argument delays a project, forces disclosure, and creates leverage and headlines. Engage an environmental lawyer or organisation early — but understand the tools yourself.

Samråd and the Permit Submission

The first lever is inside the permit process. Early **samråd** and the consultation on the **MKB** let anyone raise concerns the applicant and authority must address; a substantive, evidenced submission builds the record, can win conditions or a refusal, and lays the groundwork for appeal. Treat it not as a formality but as the first phase of the legal case, and put your strongest science — especially on water and protected habitat — on the record while the window is open. There is a further, tactical reason to make the submission full and early: it frames the case the authority must answer and the court will later review, and points you raise now are far harder for the proponent to dismiss than objections that surface only at appeal. Treat samråd as laying the foundation stones of the whole legal fight, not as a box to tick.

The Land and Environment Courts and the Right to Appeal

Sweden's distinctive litigation strength is the specialised **Mark- och miljödomstolar** and the **Land and Environment Court of Appeal**. Depending on the activity, they decide the permit at first instance or hear the appeal — and, crucially, an **environmental organisation** of sufficient size and standing has, under Aarhus-based rules, the **right to appeal** environmental permits and many planning decisions. This is the door that lets a community take the permit before a specialised judge. There are five Land and Environment Courts, each attached to a district court and staffed by judges sitting with technical and environmental expertise, and above them the Land and Environment Court of Appeal at the Svea Court of Appeal, with a further, limited route to the Supreme Court on questions of principle. The technical composition matters: it means an independent expert report — a hydrogeologist on the water, an ecologist on the habitat — is weighed by people equipped to understand it, rather than waved away. Confirm your organisation's standing and the short appeal deadline early. The standing rules exist precisely so that the public interest in the environment has a voice in court even when no individual has a direct property stake — which means a well-organised community is never locked out of the courtroom for want of a claimant, provided it has put an appeal-eligible organisation in place in good time. Be clear-eyed, though: as Ojnare showed, these courts can and do side with permit-holders, so the court is one front among several, not a guaranteed win.

EU Nature Law — the Lever Above the Courts

The strongest single lever in Swedish practice is often **European Union nature law**. A project that would harm a **Natura 2000 site** requires a special permit and must clear the strict tests of the **Habitats Directive** — significant harm to a protected site can be refused outright, and only overridden in narrow, closely policed circumstances. The **Water Framework Directive** protects the status of water bodies, and — as EU case law has established — a project that would cause deterioration can be barred. These directives sit **above** Swedish law: they can stop a project the national system would allow, and they are enforced ultimately by the **European Commission** and the **Court of Justice of the EU**. At Ojnare, it was exactly this — the area's protection under EU nature law, and its designation as Natura 2000 — that beat a project the Swedish courts had approved. Where your project touches a protected site, species, or water body, build the EU-law case first and hardest. The Habitats Directive is deliberately strict: a plan or project likely to have a significant effect on a Natura 2000 site must undergo an appropriate assessment, and may proceed only if it will not adversely affect the site's integrity — or, exceptionally, for imperative reasons of overriding public interest, with compensation, under close scrutiny. The Water Framework Directive, as the EU court's Weser judgment established, bars a project that would cause a water body to deteriorate in status. These are not soft policy goals but hard legal tests, and because they are EU obligations, a national government cannot simply legislate them away.

The Municipality, Sámi Rights, and the EU Complaint

Three further levers complete the arsenal. The **municipality** controls planning and, for **wind power**, holds a **veto** — bringing local government against a project can be decisive. The wind-power veto is especially blunt: a municipality can refuse to approve a wind project on its territory, and without that approval the permit cannot be granted — which cuts both ways, but where a community and its council are aligned against a poorly sited project, it is among the surest blocks in the whole system. For other projects, the planning monopoly gives the municipality strong influence over whether and

how land may be used. In the north, **Sámi reindeer husbandry** is a protected national interest that must be weighed, strengthened by recent court rulings and a statutory consultation duty — a real, if limited, lever, led by the affected Sámi community. Sweden's Supreme Court, in the 2020 Girjas judgment, recognised a Sámi community's exclusive right — grounded in long, immemorial use — to administer hunting and fishing on its lands, a landmark affirmation of Sámi rights; and since 2022 a statutory duty requires public bodies to consult the Sami Parliament and affected communities on matters that particularly concern them. These are genuine gains. But Sweden has still not ratified ILO Convention 169, reindeer husbandry is weighed as one national interest against others rather than given a veto, and the government granted the Kallak iron-ore concession over sustained Sami and international objection — so the lever is real, and worth pressing hard, but it is not decisive on its own. And a **complaint to the European Commission** that Sweden has breached EU nature law opens a front the national government cannot control. Use these alongside the courts and the permit fight.

Where to Turn and With Whom

Permit submissions go to the County Board or the Land and Environment Court; appeals run through the **Mark- och miljödomstol** to the **Court of Appeal** and, on points of importance, higher; EU-law complaints go to the **European Commission**; supervision complaints go to the County Board. Get help early: environmental organisations, specialist environmental lawyers, and legal clinics know exactly these procedures and can advise on standing, the short appeal deadline, the strongest ground, and how to frame the EU-law case. A lawyer or organisation engaged while consultation is open and the deadline is alive is worth far more than help sought after the machinery arrives.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a judge, an agency, a municipal councillor, a journalist, an owner, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a quarry would sit beside a protected lake that is also a drinking-water reservoir, on an MKB that understated the harm to a Natura 2000 site. That one fact becomes:

- **An EU-law argument:** the project would significantly harm a Natura 2000 site and threaten a protected water body, contrary to the Habitats and Water Framework Directives — the ground that reaches above the courts.
- **A permit argument:** the MKB was deficient and the Environmental Code's protective rules were not met — a ground for the Land and Environment Court.
- **A water argument:** a community's drinking-water reservoir is put at risk — the concrete, local stake that unites people and moves the public.
- **A media argument:** a company allowed to quarry beside a protected lake and a water supply, on an assessment that hid the harm — a clear, human story.
- **A reputational argument:** a project resting on a legally vulnerable permit and clear EU-law risk is a liability to the company's owners and buyers.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Sweden the argument that most often decides things is the **EU nature-law one**, because it is the lever the national system cannot simply override. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the court file and a claim made to the court can be spoken plainly at a public meeting; consistency across audiences is itself persuasive. Learning to move fluently between these registers — the Habitats Directive test for the court and the Commission, the drinking water for the community and the public, the reputational risk for the owner, the human story for the reporter — is one of the most valuable skills a campaign develops, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

Match the Argument to the Audience

The Land and Environment Courts and the EU institutions want the case framed precisely against the specific rule — the Habitats Directive tests, the Water Framework Directive, the Environmental Code, the MKB defect — with the documents and the timeline that prove it.

Agencies and the County Board respond to legal risk and their own mandates — the EU-law exposure, the water and

habitat harm, the reasons to object, as they did at Ojnare.

Municipal councillors respond to local democracy and the planning power (and, for wind, the veto) they hold — the local harm, the water, the strength of local feeling.

Journalists need a specific, verified, human story with a hook: a named lake, a forest, a water supply, a documented defect, a live decision.

Owners and buyers respond to legal and reputational exposure — a contested project on a shaky permit with clear EU-law risk, tied to a named company.

The community itself needs to see that the fight is winnable and shared — the small wins, the growing movement, the pressure mounting — so it lasts.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of a permit, reaches agencies, ministers, municipalities, and the proponent's owners your letters cannot, protects activists by making them visible, and can turn a local fight into a national cause. Ojnare proved it: the images of a Gotland forest blockade, and the running story of a threatened water reservoir, made a remote quarry a national issue and helped bring the agencies, the government, and EU nature law to bear.

Build the Story

Reporters need specifics: a named place and people, a dated and documented defect or harm, a clear stake, and a live decision or deadline. "A project threatens nature" is not a story; "a company has been allowed to quarry beside a protected lake that supplies drinking water, on an assessment that downplayed the harm, and the fight has reached the courts and the EU" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — a resident, a scientist — and a striking image, as the Ojnare forest became.

Reach the Right Outlets

Work outward in rings. **Local and regional media** first, where the project is felt and municipal councillors read it. Then **national outlets** — the major papers and public broadcaster, and Sweden's strong environmental and investigative press — which carry political weight. Then, for a project touching a listed company, an international owner, or an EU-law question, **European and financial media**, which reach the money and Brussels. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **agencies and the government**: national coverage of an EU-law risk raises the stakes for a government that does not want a Commission case, and reputational coverage can reach a company's owners. It is worth identifying the specific environment reporters at the national papers and the public broadcaster, and the correspondents who cover the mining north and Sami issues; a journalist who already knows the terrain needs less briefing and carries more weight, and a single well-sourced investigation into a permit granted over the agencies' objections can move a minister more than a month of press releases. Offer your strongest documented finding as an exclusive and you gain an ally, not just a mention.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the consultation, the decision, the appeal, the EU-law question, the new document, the action — so there is always a next hook, and build your own record (a simple site, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild. Where Sámi land and knowledge are involved, follow the community's lead on how its story is told. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you submit, create a record, and reach the bodies that can act. Each does double duty: it

asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Submission at Samråd / on the MKB

To: the applicant and the County Administrative Board (or the Land and Environment Court) **Subject:** Yttrande — [project], case [number]

As a person/organisation affected by [project] at [location], I submit the following. My grounds, with evidence: (1) the MKB [understates/omits] [harm — e.g. to the Natura 2000 site, the water body, the protected species]; (2) [the project would significantly harm a Natura 2000 site / cause deterioration of a water body, contrary to EU nature law]; (3) [the Environmental Code's protective rules are not met on [point]]; (4) [the samråd/assessment was inadequate on [point]]. I request that the permit be **refused**, or granted only on strict conditions, and I ask to be kept informed of the decision. [Attachments: technical report, maps, records.]

8B. Request for Public Documents (Offentlighetsprincipen)

To: [the County Board / the municipality / the agency / the court] **Subject:** Begäran om allmänna handlingar — [project], case [number]

Under the principle of public access to official documents, I request copies of the following allmänna handlingar in case [number]: the permit application and MKB; the samråd record; the decision and its reasons; the consultee responses (including from Naturvårdsverket and HaV); [the supervision file]; and [correspondence on [issue]]. I ask to receive these promptly and, where possible, electronically. If any document is withheld, please give the specific legal basis and the decision, which I may appeal.

8C. Appeal to the Land and Environment Court

To: the Land and Environment Court (via the deciding authority) **Subject:** Överklagande — permit for [project], decision [number] of [date]

As [an affected person / an environmental organisation with the right to appeal], I appeal the decision of [date] granting a permit for [project]. It is unlawful and/or unfounded because: [the project would significantly harm the Natura 2000 site / cause water-body deterioration contrary to EU law; the MKB is deficient on [X]; the Environmental Code's rules were misapplied]. I request that the permit be **set aside or refused**, or the conditions tightened, and I attach the record and my evidence.

8D. Complaint to the European Commission (EU nature law)

To: the European Commission (environmental complaints) **Subject:** Complaint — breach of EU nature law, [project], Sweden

I submit that the authorisation of [project] breaches EU law: [it permits significant harm to the Natura 2000 site [name] without meeting the Habitats Directive tests / it allows deterioration of the water body [name] contrary to the Water Framework Directive]. Sweden's authorities have [granted/are poised to grant] the permit despite this. I attach the decision, the MKB, and the relevant site and water-body data, and I ask the Commission to investigate.

8E. Letter to the Municipality (planning / wind veto)

To: [the municipal board / the planning committee] **Subject:** [Project] — municipal planning and [wind veto]

We are residents of [municipality] writing about [project]. Within the municipality's planning power [and, for wind, its right of veto], we ask you to [decline to support the plan / exercise the veto / require that [protected nature, water, local interests] be safeguarded]. Our documented concerns: [the harm to the water supply, the protected site, the local environment]. [If true:] [#] residents and [#] local organisations share this concern. We welcome a meeting and can share our full evidence.

8F. Letter Supporting a Sámi Community (in the north, at its invitation)

To: [the authority / the court], with the sameby's agreement **Subject:** [Project] — reindeer husbandry and Sámi rights

As a community group in [place], at the invitation of and in support of [the sameby / Sámi community], we underline the concerns it has raised about [project]: the harm to reindeer grazing and migration, a protected national interest, and the community's rights. We do not speak for the Sámi community; we stand with it, and we ask that reindeer husbandry and Sámi rights be properly weighed, and the community properly consulted, before any permit proceeds. [Attach material the community is content to have shared.]

8G. Letter to an Owner / Investor / Buyer

To: [the proponent's parent company / investor / customer] **Subject:** [Project] — legal and reputational risk

We write regarding your [ownership of / investment in / purchasing from] [company] in connection with [project]. The project [one-line stake — e.g. "would quarry beside a protected lake and drinking-water reservoir, faces a clear EU nature-law challenge, and is opposed by the environmental agencies"], and our documented concerns include [the EU-law risk, the MKB defect, the pending appeal]. We ask you to weigh the legal, reputational, and financial risk, and whether your own [environmental and sustainability commitments] are consistent with supporting it. We are glad to share our evidence.

8H. Email to a Reporter (Regional, National, or European)

To: [journalist] **Subject:** Story tip: [specific finding] — [the lake / the forest]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a company has been allowed to quarry beside a protected lake that supplies drinking water, on an assessment that downplayed the harm, now challenged under EU nature law"], with [a decision/hearing] due [date]. It is specific, verified, and it echoes Ojnare. I can share the full file and connect you with residents and an independent scientist. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the consultation window and the short appeal deadline. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and technical reports; and route them, where you can, through your appeal-standing organisation, your environmental lawyer, and — where Sámi land is involved — with and led by the affected community. The reply — or the silence — becomes part of your record, and in Sweden that record feeds the levers that matter most: samråd, the Land and Environment Courts, EU nature law, the transparency of the public record, and the public.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Check for EU-protected nature or water — first.** Establish whether the project affects a **Natura 2000 site**, a protected species, or a **water body**. If it does, EU nature law is your strongest lever, the one that reaches above the Swedish courts, as it did at Ojnare.
- 2. Get the documents — it's easy here.** Under the offentlighetsprincipen, ask the authority for the application, MKB, and decision (8B); you are entitled to almost all of it, promptly and usually free. The gap between the MKB and the law is usually the case.
- 3. Make a substantive samråd submission.** One evidenced submission (8A) puts your case on the record, can win conditions, and lays the ground for appeal — but the window is short, so act now.
- 4. Make sure an organisation can appeal.** Join or form an environmental organisation with the right to appeal (8C), so the permit can be taken to the Land and Environment Court. Settle this early.
- 5. Bring in the agencies and the municipality.** The county board and the environment agencies can become allies (as at Ojnare), and the municipality holds planning power and, for wind, a veto (8E).
- 6. Line up the EU-law argument and a lawyer.** Where a protected site or water body is engaged, the Habitats and Water Framework Directives are decisive; a complaint to the Commission (8D) opens a front the government cannot control.

7. Tell the story. A lake, a forest, a water supply is a powerful story; one accurate tip (8H) can reach agencies and owners a submission never will.

Do only the first three and you will have identified your strongest lever, obtained the record while it counts, and put your evidence on file — the exact foundation a bigger fight is built on. Then come back and read the rest. Even the shortest version has a spine: check the EU nature-law angle, get the documents, make the submission. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — and, in Sweden, has often done enough to expose the assessment's gaps, put the EU nature-law question on the table, and secure the standing to take the permit to court.

WHEN THE SYSTEM IS TILTED

Sweden's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt shows first in the courts: at Ojnare, the **Land and Environment Courts repeatedly ruled for the company**, and the project was beaten only by EU nature law and a government designation — a reminder that the specialised courts, valuable as they are, often lean toward permit-holders. Beyond that, Sweden is pushing hard for **mining and a "green transition,"** and the government has been willing to **override local and Sámi objection**: it granted the contested **Kallak/Gállok** iron-ore concession in the north despite sustained Sámi and international opposition, and it passed **emergency legislation** to keep the **Cementa** limestone quarry at Slite operating after the courts had refused its permit, on the ground that cement supply was too important to lose. That episode is the sharpest illustration of the tilt: a court had done exactly what the law asked and refused a permit on environmental grounds, and the government's answer was to change the law for long enough to keep the quarry running. It does not mean the courts are pointless — the refusal was real and forced the intervention into the open — but it is a candid warning that for a project the State deems strategically essential, even a clean legal win can be overridden by the legislature. Sweden has **not ratified ILO Convention 169**, so Sámi rights, though strengthened by the courts, remain more limited than in some countries. And most permits, in the end, are granted. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

EU nature law reaches above the national system. The Habitats and Water Framework Directives can stop a project the Swedish courts would allow, enforced ultimately from Brussels — the lever that won Ojnare, and the one a national government finds hardest to override.

Transparency cannot be switched off. The offentlighetsprincipen keeps the record open whatever the government's enthusiasm for a project, and an open record powers every other lever.

Organisations keep their right to appeal. The Aarhus-based standing of environmental organisations is a structural right, not a favour, and it puts a community before a judge.

Municipal power is real. Local planning control, and the wind veto, are genuine gates that a determined community and a sympathetic council can hold.

Mobilisation and Europe endure. The Ojnare tradition — sustained, visible public pressure — plus the reach to EU institutions and a company's owners, is a force no permit can dissolve.

The Honest Frame

So the honest frame for Sweden is real but demanding. EU nature law, radical transparency, the specialised courts, the right to appeal, municipal power, and Sámi rights give a community genuine — in places distinctive — power, as Ojnare proved. But the courts lean toward permit-holders, the government backs mining and the green transition, it will override local and Sámi objection, and ILO 169 is unratified. So diagnose the tilt honestly: lean on EU nature law, the transparency, the right to appeal, and the mobilisation, not on a friendly court; document every defect; protect your people and take legal advice before any risky action; treat a win as something to be defended, not banked; and think in terms of delay, conditions, exposure, and a proponent worn down as much as an outright, permanent stop. Against a project the government wants, especially in the mining north, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sweden ranks among the least corrupt countries in the world, and outright bribery is rare. But undue influence takes subtler forms — capture by an industry, a revolving door, a decision that quietly serves an interest — and where it appears, your strategy shifts: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of undue influence. A **permit granted against the clear positions** of the environment agencies and the county board, without adequately answering them, invites scrutiny. **An MKB quietly narrowed** to avoid an inconvenient effect; **revolving-door ties** between the proponent and the deciding bodies; a project **fast-tracked under a "green transition" or supply-security banner** that bypasses proper assessment; **emergency legislation** deployed to rescue a project the courts refused; **conditions never supervised** — each is worth documenting. And in Sweden the offentlighetsprincipen is your friend here: the documents that would reveal a conflict or a shortcut are, by default, public. One anomaly may be a judgment call; a pattern is capture.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. A **single agency, a municipal decision, or a national policy** can be captured by an industry or a government's priorities. But the Swedish system has bodies harder to reach that a captured national arrangement cannot easily control: the **Land and Environment Courts** and the supreme courts; the **European Commission** and the **Court of Justice of the EU**, which stand outside national politics entirely; the **Parliamentary Ombudsman (JO)** and the **Chancellor of Justice (JK)**; the **National Audit Office (Riksrevisionen)**; and a free and vigorous press with full access to the record. Undue influence thrives on staying national and quiet; your task is to lift the matter into the light and, above all, to Europe.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — using your right to the public record — and take it, with evidence, to the bodies above: the JO or JK, the Riksrevisionen, the courts, and — decisively for environmental matters — the **European Commission**, which can pursue Sweden for a breach of EU law regardless of national politics. Pair the referral with the appeal, the EU-law complaint, and the reputational pressure, so the wrongdoing and the harm are exposed together. Exposure has its own momentum: a Commission inquiry or an Ombudsman finding creates a record other bodies must reckon with, and a shortcut revealed in the public documents can unravel a decision. And protect yourself: take legal advice, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Organise, and Document

Pin down the project, the permit, and the stage (Step 1), and settle the crucial early question of **an organisation that can appeal** (Step 3). Begin the file — using the offentlighetsprincipen, request the application, MKB, and decision (Step 2 and What to Gather). And move fast on what will not wait: **check the EU nature-law angle, make a substantive samråd submission, and line up the agencies and the municipality**. Reach an environmental organisation and a lawyer, and diarise the short appeal deadline. This early phase is cheap — cheaper in Sweden than almost anywhere — and it sets up everything else.

Middle (Months 2-24): Escalate on Every Front

Grow the movement and coalition (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate as the facts warrant — an appeal to the **Land and Environment Court**, the **EU nature-law argument** and, if needed, a **Commission complaint**, the **municipal** route, and, in the north, the **Sámi reindeer-rights** defence (Step 4).

Refer any capture to the JO, the Riksrevisionen, and the Commission. Press the proponent's owners and buyers (8G). Build the media drumbeat from local to national to European (Step 5). Each front feeds the others. Do the cheap, time-sensitive things first, because a missed consultation window or a lapsed appeal deadline cannot be recovered. And sequence the moves with your lawyer and organisation so they land when they bite hardest — the samråd submission built on the fullest evidence, the appeal filed within its short window, the EU-law argument and any Commission complaint pressed when the national process resists — because in the Swedish system a strong case lost to a lapsed deadline is the most avoidable defeat there is.

Later (Months 6-48+): Sustain, Win the Line, and Redefine the Win

Sustain the movement against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — a **refused or heavily conditioned permit**, a **project blocked by EU nature law or a Natura 2000 designation**, a **municipal refusal**, a **proponent walking away**. And judge success honestly. Sometimes it is an outright stop — a quarry stopped, a forest saved, as at Ojnare. More often, against a determined government, it is a project **delayed for years, shrunk, conditioned, or so exposed and legally besieged that the proponent walks away**. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes.

The Shape of a Campaign

WEEKS 0-8	Identify Secure appeal standing Document (public records) Check EU nature law Submit at samråd
MONTHS 2-24	Grow the movement Arguments Land & Environment Court + EU law + municipality + Sámi rights Media
MONTHS 6-48+	Sustain Protect people Win the refusal / Natura 2000 block / conditions Redefine the win

FINAL ASSESSMENT

Sweden gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. A community can build its case on the State's own documents through the **offentlighetsprincipen**, a transparency few countries match. It can make its case at **samråd**, and — through an **organisation with the right to appeal** — take the permit to a specialised **Land and Environment Court** staffed to weigh the technical evidence. Above all, where a protected site, species, or water body is engaged, it can invoke **EU nature law** — the Habitats and Water Framework Directives — which sits above the national system and, as at Ojnare, can stop a project the Swedish courts had approved. It can turn to the **municipality's planning power** and, for wind, its **veto**; and, in the north, to the weight of **Sámi reindeer husbandry**. Behind all of it stands a **strong mobilisation tradition** that held a Gotland forest for a decade.

The limits are just as real. The specialised courts often side with permit-holders; the government backs mining and the green transition and will override local and Sámi objection — granting Kallak, legislating to save Cementa; and Sweden has not ratified ILO 169. No guide should pretend otherwise. At Ojnare, the courts approved the quarry, and only EU law and a government designation undid it; that is the condition of this fight, not its exception.

So the realistic promise is this: **check the EU nature-law angle first, build your case on the open public record, submit substantively at samråd, secure an organisation that can appeal, bring in the agencies and the municipality, invoke the Habitats and Water Framework Directives, and mobilise the public — and run all of it together, protecting your people and, where Sámi land is involved, following the community's lead**. Do that, and even against a government determined to build you can force delay, conditions, exposure, a Natura 2000 block, a refused permit, and a proponent worn down — and sometimes an outright stop. Do it as Ojnare did, with a decade of documentation, a forest held, and the one argument the national courts could not override, and you can win a victory that protects not only your own lake or forest but sets a precedent others will stand on.

A last word on endurance. These fights are won in years, not weeks, and the proponent is counting on your exhaustion. Its advantage is money and patience; yours is legitimacy, the radically open public record, the reach of EU nature law, and the plain fact that you are defending your home and your water while it is merely pursuing a return. Play to that. Keep the file, keep the movement, keep the record and the coverage alive, protect your people, and treat every delay, every blocked permit, every agency that comes over to your side, every disclosed document, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and Ojnare proves they work: a quarry that had won in court was stopped and a forest and its water saved, because a community documented everything, held the line for a decade, and found the lever — EU nature law — that reached above the court. What decides the outcome is method, endurance, and courage — and those you supply.

Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable — a forest saved, a quarry halted after winning in court, a stretch of protected nature the government was finally made to safeguard. The tools are here, and the strongest of them — the open record and EU nature law — reach places a determined proponent cannot easily follow; what has ever been missing in the fights that were lost was not the law but the organisation and the endurance to use it. So can yours.